

25SMCV06406 25SMCV06406

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This is a motion brought by the defendant to dismiss or strike aspects of the FAC. By way of background, the decedent here is Shahin Shadab. He allegedly died due to malpractice committed by the defense. The action is being prosecuted by plaintiff Shervin Shadab. There are two kinds of causes of action in the FAC. One type includes the causes of action for which plaintiff is the plaintiff—like wrongful death. The other is where the cause of action is a survival cause of action. In other words, the injury and damages are not those of plaintiff, but rather those of the decedent, but which survive decedent's death. It is the latter type that is here under attack.

Defendants' theory is that in a survival case the prosecuting plaintiff is not prosecuting a cause of action in plaintiff's own right but rather is prosecuting an action to benefit the decedent's estate. Because the real beneficiary of the action is the estate rather than the plaintiff, defendants argue, the plaintiff requires an attorney to go forward. Because plaintiff is currently self-represented, defendants contend that the survival claims cannot go forward and ought to be dismissed or stricken. (Defendant does not argue that the wrongful death cause of action is infirm.) Plaintiff argues that because there are no other heirs, he and the estate are one and the same and any recovery will go to him personally and stay with him, and therefore he does not need a lawyer.

Defendants rely on Hansen v. Hansen (2003) 114

Cal.App.4th 618. There, the plaintiff

filed a complaint as the personal representative of the decedent's estate. Plaintiff was not a lawyer. The court in Hansen held that

plaintiff could go forward without a lawyer in the Probate Court, but only

because a specific statute allowed it.

On the other hand, in the regular civil courts the plaintiff filing on

the estate's behalf did need a lawyer (even were there no opposition). Plaintiff here argues that Hansen is not on point because he is not representing an estate. Rather, he argues, he is the

successor-in-interest to the decedent—him personally—and therefore stands in

the same manner as any other individual plaintiff. He relies on a number of cases, one of which

is *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516. There, the plaintiff was required by the

trial court to have a lawyer to appear on behalf of a trust, and the Court of

Appeal agreed with the premise, but noted an exception. The logic of that case was that the trustee

is generally not acting on her or his own behalf, but rather on behalf of the

trust and the beneficiaries of the trust.

But that said, the court noted that where the trustee is also the settlor

and sole beneficiary, the rule does not apply.

At that point, the trustee is one and the same as the trust, and the

plaintiff was therefore allowed to prosecute the case on his own behalf.

So here, the

question is whether plaintiff is more like the plaintiff in Hansen or the plaintiff in *Aulisio*.

Without the benefit of further briefing, the court will side with

plaintiff. Plaintiff alleges that his

377.32 declaration establishes that he is the sole successor of decedent, there

is no personal representative, there is no probate estate, and no one has a

superior right to be the successor to the decedent. Plaintiff contends that based on that, he is

really a successor-in-interest, not a person representing a third party. The court tends to agree. Whatever the label, if there are interests of

others being bound up in the survival action, the court would agree with the

defense that an attorney is needed. But

if plaintiff is the one and only successor to the decedent, then plaintiff is

in all practical respects the person who is prosecuting the case for his own

sole benefit, much like the plaintiff in *Aulisio*. Therefore, the motion to strike is

DENIED. Having said that, this is an

interesting question, and this court would not take it amiss were defendants to

seek writ review. (The court actually

never takes it amiss; but this might be a case where some direct appellate

guidance would be generally helpful.)